

**NON-COMPETITIVE MEMORANDUM
FOR SIMPLIFIED ACQUISITION ACTIONS
IAW FAR 13.106-3(b)(3)**

1. REQUIRING AGENCY – DOJ/Bureau of Prisons, FCI Ashland

2. NATURE/DESCRIPTION OF ACTION BEING APPROVED – Sole source acquisition. It is further determined that only one responsible source is capable of providing services to the institution, and that such an award would prevent serious injury, financial, or other liabilities to the Government. Seven Corners, Inc. is the incumbent and has agreed to honor their previous Medicare benchmark rates for comprehensive medical services (CMS) via monthly Firm Fixed Unit Pricing purchase orders until a new CMS contract can be awarded. The proposed period of performance will be from March 1, 2025, through March 31, 2025.

3. DESCRIPTION OF SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS Agency requires Comprehensive Medical Services for March 2025. As part of the mission of the institution, comprehensive medical services are provided to the inmate population. In meeting the healthcare needs of the inmate population, the BOP provides essential medical, dental, and mental health services to Federal inmates. When a medical need arises that cannot be provided by the institution medical staff, referrals are made to community-based medical providers. Estimated value of requirement is \$165,000.00.

4. IDENTIFICATION OF STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION – The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1) as implemented by FAR 6.302-1, Only One Responsible Source. FAR 6.302-1(a)(2).

5. DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED:

It is a continuation of medical services that must be provided to the inmate population for continuity of care. The sole source acquisition is through the incumbent contractor that held the previous negotiated comprehensive medical contract. The incumbent contractor will continue to provide the necessary medical services through their established network of local medical facilities and physicians, as well as continues to provide various on-site outpatient institution services to meet the Government's needs.

6. The requirement will be publicized through the Governmentwide point of entry.

7. The contracting officer has determined the rates to be fair and reasonable in accordance with FAR 15.404-1(b)(2)(i). It is in the best interest of the Government to continue services with the incumbent provider during this interim period until a new competitive contract can be awarded.

8. It has been determined only one source is currently available to provide immediate services to maintain continuity of care while a competitive acquisition is being processed. The incumbent provider is able and willing to continue services with no lapse in coverage until a new contract is awarded.

9. There are no other supporting facts identified.

10. There are no other sources available that would be able to provide the services in the immediate timeframe required by the Government.

11. The acquisition of these services is necessary pending the award of a CMS contract. The requirement is being competed by the FAO.

12. Certification

TECHNICAL CERTIFICATION:

In accordance with FAR 6.303-2(b)(12), I hereby certify that this justification is accurate and complete to the best of my knowledge and belief.

A handwritten signature in black ink, appearing to read "R. M. M.", is written over a horizontal line.

Health Service Administrator

CONTRACTING OFFICER'S CERTIFICATION:

I certify this justification is accurate and complete to the best of knowledge and belief.

A horizontal line representing a signature.
Contract Specialist